



Justification for Exception to Fair Opportunity, Exceeding the Simplified Acquisition Threshold, Outcome-Based Delivery and Development, Security, and Operations Services (ODOS) III Extension/Alpha Omega

REFERENCE: Justification Log Number: FY26-0059 and PR Number: [REDACTED] and [REDACTED]

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Citizenship and Immigration Services (USCIS), Office of Contracting (OCON), proposes to modify an existing task order on behalf of the Office of Information Technology (OIT), Transformation Delivery Division (TDD) pursuant to RFO 16.507-6(b), Exceptions to the fair opportunity process.¹

2. Nature and/or description of the action being approved.

This action seeks approval for a sole source extension to Alpha Omega Integration, LLC (Alpha Omega) via modification No. P00039 to Task Order No. 70SBUR22F00000197 to continue the system maintenance and security work currently within the technical scope being performed. The current task order was competitively awarded in September 2022 through a small business set aside solicitation under the Chief Information Officer – Solutions and Partners 3 (CIO-SP3) Small Business (SB) Government-Wide Acquisition Contract (GWAC).

3. Description of Supplies/Services.

The Outcome-Based Delivery and Development, Security, and Operations Services (ODOS) III Performance Work Statement (PWS) details Information Technology (IT) Development, Security, and Operations (DevSecOps) services to operate and maintain major USCIS systems such as the Electronic Immigration System (ELIS) and the Global enterprise case management system. The Government requires these services for five (5) months, with one (1) two-month option and one (1) three-month option period for a total performance period from 05/01/2026 through 09/30/2026. The total estimated price for this performance period is [REDACTED]. The table below shows the breakdown of both proposed option periods:

Option Period 1	05/01/2026 – 06/30/2026	[REDACTED]
Option Period 2	07/01/2026 – 09/30/2026	[REDACTED]

The performance period of the proposed extension is allowable under the CIO-SP3 SB GWAC, which remains valid through 04/29/2026 with an additional period of performance available of up to five years on each task order awarded before the expiration date of 04/29/2026.

¹ In this document, citations to, RFO Part 16, RFO Part 10, RFO Part 11 and RFO Part 15 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 26-04, Rev. 1 for FAR Part 16, FAR Class Deviation 26-12, Rev. 1 for FAR Part 10, Rev. 1 for FAR Part 11, Rev. 1 for FAR Part 15, which were issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025.

This justification seeks approval to continue the following work unique to 70SBUR22F00000197 on ELIS and the Global case management system:

1. Continue the development of security capabilities that will enhance vetting and identification of national security and public safety threats (Notice to Appear (NTA)).
2. Continue the development of D1/D2 initiatives such as developing the ability to process the remaining categories of the I-131 and I-485 along with High Value Questions.
3. Continue to maintain the Refugee, Asylum, and International Operations Directorate (RAIO) primary case management system.

4. Statutory exception and supporting rationale.

The applicable statutory RFO citation and basis for using an exception to fair opportunity process is:

- ☒ RFO 16.507-6(b)(2). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Rationale:

The work performed on this task order is mission critical as it provides development and support in IT development, security integration, and maintenance efforts for sustaining ELIS and the Global case management system. Alpha Omega provides ELIS and non-ELIS related Outcome-Based Delivery and DevSecOps design, User Experience Design (UXD), and Operations and Maintenance (O&M) for the delivery of solutions that adapt to the changing business needs and efficiently deliver business results. A total of 96 contractor-personnel support DevSecOps, service delivery, and infrastructure needs under this task order for secure and efficient case processing and vetting of applicants.

As a result of the RFO initiative in support of Executive Order (E.O.) 14275, Restoring Common Sense to Federal Procurement, there were significant changes made to the acquisition strategy, period of performance, total estimated procurement value, and total number of teams needed for ODOS IV. While the Agency continues to finalize its long-term strategy for ODOS IV, it was determined that it was in the Government's best interest to pursue a smaller, competitive version of ODOS (referred to as ODOS 3.1).

The succeeding competitive procurement, ODOS 3.1, was expected to be in place prior to the expiration of the current task order but has faced numerous delays in both the solicitation and evaluation phases, consequently prolonging the Government's efforts to transition work from the ODOS III contractors to new awardees. The Government has determined that a non-competitive extension to the current award is the most efficient method to continue system maintenance and the current iteration of ODOS III requirements under the Alpha Omega task order until the ensuing awards are made and sufficient time is given to the new awardees to transition in.

This justification supports the agency's requirement to continue ODOS III support commencing on 05/01/2026. Market research that was conducted for the competitive recompetes that's currently in-

progress indicated that there are contractors capable of performing the services required by ODOS on multiple EAGLE Next Generation (Next Gen) contracts as well as the General Services Administration (GSA) Multiple Award Schedule (MAS). However, it has been concluded that only Alpha Omega has the specific skills, knowledge and experience needed to provide the required specialized services at the level of quality required at this time and within the timeframe required to continue needed performance while the follow-on contract effort is pursued.

The nature of the requirement is complex and requires large-scale coordination and mobilization of development teams and there is a significant learning curve associated with commencing to support these projects. The time between a potential competitive short-term award action and the need date for services (05/01/2026) would not allow sufficient time for recruiting, hiring, background checks and entry-on-duty, and most importantly, a transition period with knowledge transfer. The inability to conduct a proper in-depth transition will result in failure to deliver on key USCIS priorities. Alpha Omega is currently capable of providing the required staffing and the level of quality within this short timeline with all necessary teams in place as well as extensive program knowledge to continue operations to complete the projected tasks and to transition ongoing activities to the new competitive awardee.

As referenced above and for greater context, this task order is essential for USCIS to continue its adjudicative mission as the Agency would experience unacceptable losses that could not be overcome by Government personnel. Without this task order, DHS and USCIS would lose the services needed to develop and maintain the ELIS and Global enterprise case management systems; these systems currently process over 90% of the Agency's adjudication workload. If the task order is not extended, USCIS would be unable to continue supporting the following initiatives that fulfill multiple Executive Orders, including the development of security capabilities that will enhance vetting and identification of national security and public safety threats (Notice to Appear (NTA)), as well as the development of D1/D2 initiatives such as developing Get Work and Global pull strategy which provide the capabilities of having one location for work that will allow better case alignment processing times across different centers and offices. The first product to use this approach is the I-130. Furthermore, the loss of Global support will severely impact the agency's ability to maintain Refugee, Asylum and International Operations Directorate (RAIO) primary case management system.

Additionally, losing the DevSecOps support services provided under the ODOS III task order will severely inhibit the Agency's ability to maintain and scale its major enterprise benefits case management system, which would be unacceptable and detrimental to the mission of the Agency. USCIS does not have the bandwidth or skillsets required to design, develop, test, and deliver software products. The cooperative effort of Alpha Omega is vital for creating high-quality software that meets the needs of the Agency and implementing executive orders and any Congressional mandated requirements, while adhering to strict project timelines and budgets.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer has determined that the anticipated cost to the Government will be fair and reasonable. The labor rates awarded on the CIO-SP3 SB GWAC were determined fair and

reasonable by the awarding Contracting Officer. Further, the total price, labor mix, number of hours, and other direct costs resulting from the ODOS III competition were determined fair and reasonable by the ordering Contracting Officer. The Government will use one or more of the price analysis technique(s) identified in RFO 15.404-1 to evaluate the extension proposal and may conduct negotiations as necessary to ensure that the price is fair and reasonable.

6. Any other facts supporting the justification.

Only one awardee is capable of providing the required services at the level of quality required because the services are unique are not due to poor planning, but due to events outside the control of the contracting office. The ODOS IV Integrated Product Team (IPT) was formed in October 2023. Program staff released a Request for Information (RFI) in February 2024 and spent approximately seven (7) months using the responses, in conjunction with meetings with vendors, to complete market research and formulate a plan for the acquisition. The acquisition strategy was briefed to the Head of Contracting Activity and approved in October 2024. The recompet acquisition experienced unanticipated and significant delays with the review and approval of the acquisition plan due to the new policies and procedures that have recently been implemented. More specifically, the ODOS IV acquisition plan was pending review by DHS and the Department of Government Efficiency (DOGE) liaison since March 2025.

As briefly discussed in Section 4, the succeeding competitive procurement, ODOS 3.1, was expected to be in place prior to the expiration of the current task order but has faced numerous delays in both the solicitation and evaluation phases, consequently prolonging the Government's efforts to transition work from the ODOS III contractors to new awardees.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

Any barrier to competition will be removed upon finalization of the source selection and a transition to a new awardees. No other competitive barriers are known at this time, which would lead to a future fair opportunity exception. This sole source extension is only intended to continue the current services until the award and transition-in of the in-process competitive procurement is completed.

8. USCIS intends to post this requirement on Sam.gov pursuant to RFO 16.507-6(f).

9. Technical/Requirements Personnel Certification.

Pursuant to RFO 16.507-6(d)(2)(ix), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.

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Date: 2026.04.21 12:52:01
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Chief, OIT/TDD

Date

10. Contracting Officer Certification

Pursuant to RFO 16.507-6(d)(2)(viii), I certify that this justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer

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HEMINGWAY
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Date

APPROVAL: Pursuant to RFO 16.507-6(d)(2)(x), I hereby determine the circumstance identified in Section 4 applies to the order.



Digitally signed by [REDACTED]
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Procuring Activity Advocate for Competition or alternate

Date